

23BBCV01916 23BBCV01916

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Case Number: 23BBCV01916 Hearing Date: July 10, 2026 Dept: B

Hon.

Victor Avila, Dept B

Hearing Date: 07/10/26

CASE

NO./NAME: 23BBCV01916/Albert Valle v. Eduard Barakyozyan, et. al.

Motion

for Relief from Waiver of Objections

Moving Party: Defendants

Eduard Barakyozyan and Adrine Isayan

Responding Party:

Plaintiff Albert Valle

Notice: Sufficient

Ruling: GRANT

Motion

to Compel Verified Responses to Special Interrogatories, Set Two and Request
for Monetary Sanctions

Moving Party: Plaintiff

Albert Valle

Responding Party:

Defendant Adrine Isayan

Notice: Sufficient

Ruling: DENY

NOTICE

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at or by telephone at (818) 260-8422.

BACKGROUND

This is a personal injury case. On May 15, 2023, Plaintiff Albert Valle ("Plaintiff") alleges to have suffered third-degree burns after he tripped on debris, miscellaneous items, and/or an exposed concrete slab at 9867 Milbur Dr., Sun Valley, CA 91352 (the "Property") and hot tar spilled on him. (Compl., Prem. L-1.) Defendants Eduard Barakyozyan ("Barakyozyan"), Adrine Isayan ("Isayan"), Albert Iskhanyuan, and Albert Iskhanyan ("Defendants") allegedly owned, leased, occupied, or controlled the Property. (Ibid.)

On August 18, 2023, Plaintiff filed his Complaint.

On September 18, 2025, Plaintiff propounded Special Interrogatories, Set Two ("Special Interrogatories") and Requests for Production of Documents, Set Four ("Production of Documents") on Isayan and Barakyozyan. (Ducey Decl., ¶ 3.)

After receiving extensions, Isayan and Barakyozyan failed to respond to discovery by the December 3, 2025 deadline. (Id. at ¶ 13.)

On February 13, 2026, Plaintiff filed a Motion to Compel Verified Responses to Special Interrogatories, Set Two, from Adrine Isayan and a Motion to Compel Verified Responses to Requests for Production of Documents, Set Four from Barakyozyan ("Motion to Compel"). No opposition has been filed to the Motion to Compel.

On March 9, 2026, Isayan and Barakyozyan filed a Motion for Relief from Waiver of Objections ("Motion for Relief"). No opposition has been filed.

MOTION FOR RELIEF FROM WAIVER OF OBJECTIONS

Legal
Standard

The party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). (Civ. Proc. Code, § 2030.290, subd. (a).) The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: (1) The party has subsequently served a response that is in substantial compliance with Sections 2030.210, 2030.220, 2030.230, and 2030.240; and (2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Ibid.)

The party to whom a demand for inspection, copying, testing, or sampling has been directed shall respond separately to each item or category of item by any of the following: (1) a statement that the party will comply with the particular demand for inspection, copying, testing, or sampling by the date set for the inspection, copying, testing, or sampling pursuant to paragraph (2) of subdivision (c) of Section 2031.030 and any related activities; (2) a representation that the party lacks the ability to comply with the demand for inspection, copying, testing, or sampling of a particular item or category of item; or (3) an objection to the particular demand for inspection, copying, testing, or sampling. (Civ. Proc. Code, § 2031.210, subd. (a).)

Similarly, the party to whom the demand for inspection,

copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). (Id. at Civ. Proc. Code, § 2031.300, subd. (a).) The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: (1) The party has subsequently served a response that is in substantial compliance with Sections 2030.210, 2030.220, 2030.230, and 2030.240; and (2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Ibid.)

The party to whom interrogatories have been propounded shall respond in writing under oath separately to each interrogatory by any of the following: (1) An answer containing the information sought to be discovered; (2) An exercise of the party's option to produce writings; or (3) An objection to the particular interrogatory. (Civ. Proc. Code, § 2030.210, subd. (a).)

Discussion

Isayan and Barakyozyan move for an order granting relief from waiver of objections as to Special Interrogatories, Set Two ("Special Interrogatories") and Requests for Production of Documents, Set Four ("Production of Documents") on Isayan and Barakyozyan.

Here, the Court finds that Isayan and Barakyozyan's failure to timely serve responses resulted from mistake, inadvertence, surprise, or excusable neglect. Isayan and Barakyozyan demonstrated that their failure to serve responses by the December 3, 2025, deadline resulted from an inadvertent calendaring oversight in counsel's office. (Ducey Decl., ¶ 13.) The calendaring clerk was on a pre-scheduled international vacation from November 26, 2025 through December 5, 2025. (Ibid.) Thus, Isayan and Barakyozyan's failure to respond was due to mistake, inadvertence, surprise, or excusable neglect.

Isayan and Barakyozyan have filed and served responses in the form of objections to the Production of Documents and Special Interrogatories. (Id. at ¶ 20-23, Exh. I-L.) Because sections 2031.210 and 2030.210 permit objections as a form of response, Isayan and Barakyozyan have served a substantially compliant response. Accordingly, the Motion for Relief is granted. Isayan and Barakyozyan are ordered to serve substantive responses within 10 days.

MOTION TO COMPEL

Legal

Standard

A party must respond to interrogatories within 30 days after service. (Code Civ. Proc., § 2030.260, subd. (a).) If a party to whom interrogatories are directed fails to serve a timely response, the party propounding the interrogatories may move for an order compelling response to the interrogatories. (Civ. Proc. Code, § 2030.290, subd. (b).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Id. at § 2030.290, subd. (a).) There is no time limit for a motion to compel responses to interrogatories other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., §§ 2024.020, subd. (a), 2030.290.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.)

The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Civ. Proc. Code, § 2030.290, subd. (c).) In lieu of or in addition to that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010). (Ibid.)

Discussion

Plaintiff seeks to compel Isayan to respond to Special Interrogatories and seeks monetary sanctions because Plaintiff contends that Isayan failed to timely respond to the Special Interrogatories by the deadline. Because the Court grants the Motion for Relief and orders Defendants to serve verified responses to Special Interrogatories and Production of Documents, Plaintiff's Motion to Compel Isayan to respond to Special Interrogatories is moot and denied as a whole. Consequently, Plaintiff's Request for Monetary Sanctions is also denied.

CONCLUSION

AND ORDER

Defendants Eduard Barakyozyan and Adrine Isayan's Motion for Relief from Waiver of Objections is GRANTED.

Defendants Eduard Barakyozyan and Adrine Isayan are ordered to serve verified responses to Special Interrogatories, Set Two, and Requests for Production of Documents, Set Four on Isayan and Barakyozyan within 10 days of the Court's order.

Because the Court is granting the Motion for Relief from Waiver of Objections and ordering responses, the Motion to Compel Verified Responses to Special Interrogatories, Set Two, and Request for Monetary Sanctions from Defendant Adrine Isayan is DENIED.

MOVING PARTY shall provide notice of this order.

Hon. Victor Avila

Judge of the Superior Court